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2025_7539	06/02/2026
2025_7466	06/02/2026
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2025_7473	09/01/2026
2025_7425	12/12/2025
2025_7568	05/12/2025
2025_7500	05/12/2025
2025_7489	05/12/2025
2025_7512	28/11/2025
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Question ID	2026_7731
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Supervisory reporting - Liquidity (LCR, NSFR, AMM)
Article	415
Paragraph	
Subparagraph	

COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Regulation (EU) 2024/3117 - ITS on supervisory reporting of institutions
Article/Paragraph	18
Name of institution / submitter	Oesterreichische Nationalbank
Country of incorporation / residence	Austria
Type of submitter	Competent authority
Date of submission	24/02/2026
Published as final Q&A	13/03/2026
Subject matter	COREP Additional Liquidity Monitoring Metrics - technical implementation of DPM v4.2 for template C_67.00.a and C_67.00.w - SubCategory "new_CO4" used instead of "new_CO1"
Question	With DPM v4.2 the modeling of template C_67.00.a and C_67.00.w has been changed to use SubCategory new_CO4 instead of new_CO1. Now it is possible to submit the "LEI code", the "MFI Code" and "Type of identifier, other than LEI or MFI code" but not the "National code". How should a national code be reported in template C_67.00.a and C_67.00.w and what is the reason behind this change?
Background on the question	With the publication of DPM v4.2 the modeling of template C_67.00.a and C_67.00.w has been changed, and it is no longer aligned with COREP Own Funds. The reporting of a national code is not straight forward with the new modeling of the template and should be realigned with COREP Own Funds. SubCategory new_CO1 consists of the following members: • (qCO:qx2001) National code and • (qCO:qx2000) Legal Entity Identifier (LEI) Sub Category new_CO4 consists of the following members: • (qCO:qx2013) MFI code, • (qCO:qx2014) Type of identifier, other than LEI or MFI code and • (qCO:qx2010) LEI code type
Final answer	The technical package has to be amended to allow the reporting of information in accordance with Annex 19 of the ITS on supervisory reporting. As a temporary solution, until the technical package will be amended

	(expected in 4.3 release), institutions shall report in templates C 67.00.a and C 67.00.w the following codes: • (qCO:qx2010) 'LEI code type' to be understood as 'LEI code' as mentioned in Annex 19 of the ITS on supervisory reporting • (qCO:qx2014) 'Type of identifier, other than LEI or MFI code' to be understood as 'Non-LEI code' as mentioned in Annex 19 of the ITS on supervisory reporting
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2026_7731

Question ID	2024_7220
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Credit risk
Article	135
Paragraph	1
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	n/a
Type of submitter	Credit institution
Date of submission	10/10/2024
Published as final Q&A	13/03/2026
Subject matter	Use of credit assessments by ECAIs not in scope of Regulation (EC) No 1060/2009.
Question	Can external credit assessments that have been issued by an ECAI, but were not publicly disclosed, be used to determine the risk weight of an exposure under the Standardised Approach?
Background on the question	While rating methodologies for private funds do exist, the availability of public ratings is very limited. The treatment as unrated corporates of in particular low-risk funds, such as pension funds, leads to very punitive risk weights and capital requirements under the Standardised Approach. While recognized ECAIs issue private ratings for these entities, it is not made explicit in Chapter 2, section 3 CRR whether or not private ratings issued by

	ECAIs are permitted for determining risk weights under SA.
Final answer	An external credit assessment issued by an external credit assessment institution (ECAI) that is transmitted or shared in a form that does not correspond to public disclosure or distribution by subscription does not meet the requirements of Article 135(1) of the CRR, except in the case the external credit assessment is produced by a central bank. In accordance with Article 135(1) of Regulation (EU) No 575/2013 (CRR), an external credit assessment may be used to determine the risk weight of an exposure under its Chapter 2, Title II, Part Three only if it has been issued or endorsed by an ECAI, in both cases in accordance with Regulation (EC) No 1060/2009 (CRAR). In accordance with the definition provided under point (98) of Article 4(1) CRR, an ECAI can be: 1. Either a credit rating agency that is registered or certified in accordance with CRAR. 2. Or a central bank issuing credit ratings which are exempted from the application of the CRAR when produced in accordance with Article 2(2)(d) of that Regulation. For an external credit assessment to be issued or endorsed by an ECAI in accordance with the CRAR it needs to be in scope of that Regulation. To be in scope of the CRAR, its Article 2(1) stipulates that the credit rating needs to be disclosed publicly or distributed by subscription and the credit rating agency needs to be registered or certified in the Union.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2024_7220

Question ID	2026_7688
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Credit risk
Article	199
Paragraph	4a
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recom	Not applicable

mendations	
Article/Paragraph	Not applicable
Type of submitter	Competent authority
Date of submission	20/01/2026
Published as final Q&A	27/02/2026
Subject matter	US Hard test: adequacy of considering US charge-off rates corresponding to loss rates for exposures secured by residential property or commercial immovable property situated within the territory of the US
Question	May institutions in accordance with Article 199 (4a) of Regulation (EU) No 575/2013 (CRR) apply the derogations from point (b) of paragraph 2 of Article 199 CRR, as referred to in paragraphs 3 and 4 of Article 199 CRR, for residential / commercial immovable property situated within the territory of the US, based on (adjusted) US charge-off rates as published by the Board of Governors of the Federal Reserve System (US), retrieved from FRED, Federal Reserve Bank of St. Louis?
Background on the question	According to Article 199(2)(b) of the Capital Requirements Regulation, Regulation (EU) 575/2013 ("CRR"), "institutions may use as eligible collateral residential property [...] and commercial immovable property [...] where [...] the repayment of the facility does not materially depend on any cash flow generated by the underlying property serving as collateral". According to Article 199(3) of CRR, "Institutions may derogate from point (b) of paragraph 2 for exposures secured by residential property situated within the territory of a Member State, where the competent authority of that Member State has published evidence showing that a well-developed and long-established residential property market is present in that territory with loss rates that do not exceed any of the following limits: (a) the aggregated amount reported by institutions under Article 430a(1), point (a), divided by the aggregated amount reported by institutions under Article 430a(1), point (c), does not exceed 0,3%; (b) the aggregated amount reported by institutions under Article 430a(1), point (b), divided by the aggregated amount reported by institutions under Article 430a(1), point (c), does not exceed 0,5%". According to Article 199(4) of the CRR, "Institutions may derogate from point (b) of paragraph 2 for commercial immovable property situated within the territory of a Member State, where the competent authority of that Member State has published evidence showing that a well-developed and long-established commercial immovable property market is present in that territory with loss rates that do not exceed any of the following limits: (a) the aggregated amount reported by institutions under Article 430a(1), point (d), divided by the aggregated amount reported by institutions under Article 430a(1), point (f), does not exceed 0,3%; (b) the aggregated amount reported

by institutions under Article 430a(1), point (e), divided by the aggregated amount reported by institutions under Article 430a(1), point (f), does not exceed 0,5%.”

According to Article 430a(1) of CRR, “institutions shall report to their competent authorities on an annual basis the following aggregate data for each national immovable property market to which they are exposed: (a) losses stemming from exposures for which an institution has recognised residential property as collateral, in each case up to the lower of the pledged amount and 55% of the property value of the residential property, unless otherwise decided under Article 124(9), where applicable; (b) overall losses stemming from exposures for which an institution has recognised residential property as collateral, in each case up to the lower of the pledged amount and 100% of the property value of the residential property; (c) the exposure value of all outstanding exposures for which an institution has recognised residential property as collateral, in each case up to the lower of the pledged amount and 100% of the property value of the residential property; (d) losses stemming from exposures for which an institution has recognised commercial immovable property as collateral, in each case up to the lower of the pledged amount and 55 % of the property value of the commercial immovable property, unless otherwise decided under Article 124(9), where applicable; (e) overall losses stemming from exposures for which an institution has recognised commercial immovable property as collateral in each case up to the lower of the pledged amount and 100% of the property value of the commercial immovable property; (f) the exposure value of all outstanding exposures for which an institution has recognised commercial immovable property as collateral, in each case up to the lower of the pledged amount and 100% of the property value of the commercial immovable property”.

According to Article 199(4a) of the CRR, “institutions may also apply the derogations referred to in paragraphs 3 and 4 of this Article in cases where the competent authority of a third country [...] publishes corresponding loss rates for exposures secured by residential property or commercial immovable property situated within the territory of that third country”.

According to Article 4(75) of the CRR, “‘residential property’ means any of the following: (a) an immovable property which has the nature of a dwelling and satisfies all applicable laws and regulations enabling the property to be occupied for housing purposes; (b) an immovable property which has the nature of a dwelling and is still under construction, provided that there is the expectation that the property will satisfy all applicable laws and regulations enabling the property to be occupied for housing purposes; (c) the right to inhabit an apartment in housing cooperatives located in Sweden; (d) land accessory to a property referred to in point (a), (b) or (c)”.

According to Article 4(75a) of the CRR, “‘commercial immovable property’ means any immovable property that is not residential property”.

The reporting according to Article 430a(1) is further detailed in the reporting template (Annex VI of Commission Implementing Regulation 2021/451) and the instructions for the reporting on losses stemming from lending collateralised by immovable property (Annex VII of Commission Implementing Regulation 2021/451) and includes relevant definitions of losses, exposure values and property values as well as reference date considerations. Regarding the losses,

- “‘loss’ means ‘economic loss’ as defined in point (2) of Article 5 CRR [...]”;
- “recovery flows stemming from other sources (e.g. bank guarantees, life insurance, etc) shall not be recognised when calculating losses”;
- “loss shall not be netted with the profit of a successful recovery of another position”;
- “the calculation of economic loss should start from outstanding exposure value at reporting date and should include at least: (i) proceeds from collateral realisation; (ii) direct costs (including interest rates payments and workouts costs linked to the liquidation of the collateral); and (iii) indirect costs (including operating costs of the workout unit). All components need to be discounted to the reporting reference date.”;
- “Losses shall be reported as soon as provisions are to be booked in accordance with accounting rules. Also estimated losses should be reported. [...]”
- “Losses should be reported for all defaults on loans secured by real estate property that occur during the respective reporting period and irrespective of whether the work out is completed during the period or not. [...] Since there may be a long time lag between default and loss realisation, loss estimates (which includes incomplete workout process) shall be reported in cases where the workout has not been completed within the reporting period”
- “[...] the latest valuation of the property before the default date shall be used to determine which part of the loss shall be reported in cell 0010 (identification of exposure values which is fully and completely secured) and the re-valued property value for the amount to be reported (estimation a possible workout from collateral) in cells 0010 and 0030 [losses].”

A supervised institution calculate risk-weighted exposure amounts and expected loss amounts under the IRB Approach and uses immovable property collateral situated in the US. This immovable property does not fulfil point (b) of paragraph 2 of Article 199 CRR. Therefore, the supervised institution derogates from point (b) of paragraph 2 of Article 199 CRR based on Article 199(4a). For this purpose, the supervised institution identifies as corresponding loss rates the US charge-off rates extracted from the FRED (Federal Reserve Economic Data) online database hosted by the Research Department at the Federal Reserve Bank of St. Louis (suggested citation

according to the FRED webpage: “Board of Governors of the Federal Reserve System (US), Charge-Off Rate on Commercial Real Estate Loans (Excluding Farmland), Booked in Domestic Offices, All Commercial Banks [CORCREXFACBS], retrieved from FRED, Federal Reserve Bank of St. Louis; <https://fred.stlouisfed.org/series/CORCREXFACBS>, December 18, 2025”). The supervised institution performs a potential mapping of US Commercial Real Estate (CRE) charge-offs rates to commercial immovable property hard test loss rates under a given set of assumptions and transformations as follows:

1. Losses (nominator of loss rates): The US charge-off rates include in the nominator net charge-offs (gross charge-offs minus recoveries). These net charge-offs do not incorporate the cap to the lower of the pledged amount and 55% of the property value of the commercial immovable property as defined in Article 430a(1)(d) CRR. These net charge-offs also do not incorporate the cap to the lower of the pledged amount and 100% of the property value of the commercial immovable property as defined in Article 430a(1)(e) CRR. Losses that do not incorporate the cap as defined in Article 430a(1)(e) CRR may be considered equivalent under the assumption that losses would not exceed the property value. The second assumption is that the US net charge-offs include all relevant losses as defined in Annex VII of Commission Implementing Regulation 2021/451.
2. Secured exposure value (denominator of hard test loss rates): The US charge-off rates include in the denominator the outstanding amount of the loans. The denominator of the hard test loss rate is defined in Article 430(1)(f) CRR as the exposure value of all outstanding exposures for which an institution has recognised commercial immovable property as collateral, in each case up to the lower of the pledged amount and 100% of the property value of the commercial immovable property. These can be assumed as equal if all loans are fully secured and thus the outstanding loan amount would be equal to the Article 430(1)(f) CRR secured exposure value.
3. Loss rates and thresholds: Following the description above, the US charge-off rates could be mapped against the loss rate defined in point (b) of paragraph 4 of Article 199 CRR, but no US charge-off rate is available that could be mapped against point (a) of paragraph 4 of Article 199 CRR. Therefore, the US charge-off rate would have to be compared to the lower of the two thresholds, 0.3%, as referred to in point (a) of paragraph 4 of Article 199 CRR.
4. Quarterly vs. annual data: The US charge-off rates are published in the FRED online database as annualised quarterly data (not seasonally adjusted data) and need to be converted to annual charge-off rates by a weighted average. For this purpose, corresponding data on loan volumes need to be used and the FRED online database includes monthly data on loan volumes.
5. Different definitions of commercial immovable property in the CRR

	and commercial real estate in the FRED data: The US definition for CRE differs from the definitions in Article 4(75a) CRR since US CRE excludes farmland but includes multifamily residential. A correction for this mismatch in the definition requires the identification of separate charge-offs and volumes for each property type so that the sums or differences, respectively, of nominator and denominator and thereafter adjusted charge-off rates can be calculated. The charge-offs in the nominator can also be derived from the charge-off rates and the volumes. This is possible for farmland, as both, quarterly charge-off rates and monthly volumes are published in the FRED online database. For multifamily residential, monthly volumes are also available, but no separate charge-offs or charge-off rates. Therefore, the US charge-off rate for commercial real estate including farmland and excluding multifamily residential can only be approximated by keeping the charge-offs for multifamily residential property included in the nominator but excluding the respective volumes from the denominator. Such approximation would be exact under the assumption that the charge-offs for multifamily residential were zero. For residential property, similar considerations apply. However, as stated under point 5) above, the charge-offs for multifamily residential cannot be separated from the US CRE charge-offs.
Final answer	Based on a comparison of data definitions between the US charge-off rates and hard-test loss rates, for the purposes of Article 199(4)(a) of the CRR (and also for the purposes of Articles 125(3) and 126(3) of the CRR) the US charge-off rates as published on the FRED online data base cannot be considered as corresponding loss rates for exposures secured by residential property or commercial immovable property situated within the territory of the US. In addition, it should be noted that, unlike the CRR framework, the US prudential framework does not provide for a “hard test” mechanism for real estate exposures comparable to that laid down in Articles 199, 125 and 126 of the CRR. In the absence of such a framework, the nature, purpose and supervisory use of the US data sets published by US authorities may differ from those underlying the EU hard test. In particular, US institutions are not required to rely on such data for validating compliance with quantitative loss-rate thresholds equivalent to those set out in the CRR. It is therefore not possible to establish a direct parallelism between the two supervisory regimes for the purposes of applying the CRR hard test. This is for the reason that the data definitions underlying those US charge-off rates do not correspond to the relevant loss rate definitions applied within the hard test, in particular with respect to the definitions referred to in Articles 4 (1) (75), 4 (1) (75a) and 430a (1) of the CRR and Art. 13 of Commission Implementing Regulation 2024/3117, and thus, even assuming

	that the US data could serve broadly similar statistical purposes, they are not compatible with the specific EU legal and reporting definitions required for the application of the hard test. Accordingly, these US charge-off rates are an inappropriate means of validating compliance with the hard test thresholds referred to in paragraphs 3 and 4 of Article 199 of the CRR (and in Articles 125(2), second subparagraph, and 126(2), second subparagraph, respectively).
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2026_7688

Question ID	2025_7613
Status	Final Q&A
Legal act	Regulation (EU) No 2022/2554 (DORA Reg)
Topic	ICT-related incidents (management / classification / reporting)
Article	3
Paragraph	
Subparagraph	No. 8
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Regulation (EU) 2024/1772 - RTS on the classification of ICT-related incidents and cyber threats
Article/Paragraph	Articles 6, 8, 9
Name of institution / submitter	BaFin
Country of incorporation / residence	Germany
Type of submitter	Competent authority
Date of submission	04/11/2025
Published as final Q&A	06/02/2026
Subject matter	Classification of phishing-attacks as a reportable major ICT-related incident
Question	Can individual phishing incidents that target the customers of a financial entity in their “private sphere” be subsumed under “compromises the security of the network and information systems” pursuant to Article 3 No. 8 of Regulation (EU) 2022/2554 and can they therefore constitute a major ICT-related incident that must be reported pursuant to Article 19 (1) of Regulation (EU) 2022/2554?

Background on the question	The question concerns the categorization of a phishing incident as an ICT-related incident in situations where the phishing incident is directed against the customers of financial entities in their “private sphere” – e.g. the customer clicks on a phishing link in his private email inbox or the customer fills in his credentials on a “phishing-homepage” of the financial entity. In order for individual phishing incidents targeting the privacy of a financial entity's customer to be considered as ICT-related incidents, they would first of all have to fulfil the definition of a major ICT-related incident (Article 3 No 8 and 10 of Regulation (EU) 2022/2554). Therefore, these incidents would have to be classified as “compromis[ing] the security of the network and information systems” (cf. Article 3 No. 8 of Regulation (EU) 2022/2554). However, the wording of Art. 3 No. 8 of Regulation (EU) 2022/2554 leaves open whether this impairment must be directed against the financial entities itself or whether customers of the financial entity, may also be affected. The further criteria for assessing a major ICT-related incident from Delegated Regulation (EU) 2024/1772 do not currently provide clarity, as the relationship between Article 6 of Delegated Regulation (EU) 2024/1772 and the definition in Article 3 of Regulation 2022/2554 is unclear. Among the national supervisory authorities, the consideration of these phishing incidents is handled differently. The question submitted is therefore intended to ensure legal certainty in the interpretation of the aforementioned standard as well as the uniformity and comparability of reports of major ICT-related incidents. Moreover, we would like to point out, that a reporting obligation in these cases would entail a considerable amount of additional work for financial entities due to the large number of phishing incidents. Mostly all of them would be reportable because the materiality thresholds of Article 8 (1) lit. a Delegated Regulation (EU) 2024/1772 and Article 9 (5) lit. b of Delegated Regulation (EU) 2024/1772 will be regularly met in this context (possible loss of data in case of a successful, malicious and unauthorised access, e.g. the customer clicks on a phishing link in his private email inbox and therefore the threat actor receives access to the customer account). It is questionable whether this is in line with the idea of reducing administrative burdens, as stated, for example, in recital 23 of Regulation (EU) 2022/2554.
Final answer	When a phishing incident in the private sphere of the customer does not affect services provided by the financial entity directly (or via any of the financial entity's third-party providers), it does not qualify as an ‘ICT-related incident’ or ‘an operational or security payment-related incident’ under DORA. Therefore, in that case, it cannot trigger the thresholds to be a major

	ICT-related incident and the related reporting obligation. By contrast, if the financial entity itself is successfully targeted and faces an intrusion, for example through phishing emails sent to employees, or in case a widescale phishing campaign ending up affecting the financial entity's services, the incident can be qualified as an ICT-related incident under DORA. To the extent that this ICT-related incident reaches the relevant thresholds, it may be classified as a major ICT-related incident.
Answer prepared by	Answer prepared by the Joint ESAs Q&A
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7613

Question ID	2025_7539
Status	Final Q&A
Legal act	Regulation (EU) No 2022/2554 (DORA Reg)
Topic	ICT-related incidents (management / classification / reporting)
Article	3
Paragraph	21
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	N/A
Type of submitter	Law firm
Date of submission	30/07/2025
Published as final Q&A	06/02/2026
Subject matter	Types of "telephone services" included under the definition of "ICT services"
Question	Which types of telephone services fall within the scope of the definition of "ICT services"?
Background on the question	Article 3(21) defines ICT services as <i>"digital and data services provided through ICT systems to one or more internal or external users on an ongoing basis, including hardware as a service and hardware services which includes the provision of technical support via software or firmware updates by the hardware provider, excluding traditional analogue telephone services"</i>. Recital 35 further states that this exclusion covers <i>"only the limited category of traditional analogue telephone services qualifying as Public Switched Telephone Network (PSTN) services, landline services, Plain Old Telephone</i>

	<i>Service (POTS), or fixed-line telephone services".</i> However, there is uncertainty as to whether more modern telecommunications infrastructure - such as fiber-optic lines or black fiber - should be considered part of the excluded category or fall within the scope of ICT services. For example, while fiber-optic services are not analogue in nature, it is unclear whether their classification as "landline" services results in their exclusion. Clarification on the general criteria or characteristics that distinguish included from excluded telephone services would be helpful for consistent interpretation and application of the DORA Regulation.
Final answer	The exclusion provided under Article 3(21) of DORA, which refers to "traditional analogue telephone services", cannot be extended to fibre optic networks, including dark fibre. DORA deliberately defines ICT services broadly so as to encompass any digital (i.e. electronic rather than purely electrical) service that directly contributes to the functioning of financial entities' information and communication systems. This includes connectivity and data transmission services, such as telecommunications networks, and therefore fibre optic infrastructure. Recital 35 clarifies that the exclusion is limited to traditional analogue telephone services. This expression refers to telephony based on analogue circuit switching, such as classic fixed-line voice services delivered via the public switched telephone network (PSTN) for Plain Old Telephone Service (POTS) as referred to in that recital. These services deliver speech as continuous analogue electrical signals (without the involvement inverse multiplexers to separate voice from data signals at the delivery location). Recital 35, which also mentions landline services, must be interpreted consistently with this notion: it concerns fixed lines solely when they are delivering the traditional analogue voice service, not the physical infrastructure as such. The rationale for the exclusion does not lie in the use of a physical cable (copper, fibre, etc.), but rather in the transmission technology employed. The analogue PSTN works through continuous electrical modulation. Fibre networks, by contrast, are designed to carry digital optical signals, which rely on packet-switched transmission and require electronic systems to be activated, routed, and secured. They are used for digital telephone services, such as Voice over IP (VoIP) and cloud-based communications platforms. The mere fact that fibre is "dark" does not alter its inherent function as a medium for digital traffic: it remains a passive transmission capacity which, once lit, plays a direct role in carrying digital signals and must therefore be treated as part of an ICT service. It has to be reminded that DORA's objective is to preserve the resilience and

	operational continuity of ICT systems and services supporting the financial sector. From this perspective, the distinction between “lit” and “unlit” fibre is immaterial: what matters is that fibre constitutes critical infrastructure which must be deployed, monitored, and protected (redundancy, contingency, recovery in case of cuts) to ensure the resilience of financial entities’ digital operations. Unlike legacy analogue voice services, which are being phased out and no longer pose material resilience concerns, fibre-based services are central to today’s digital communications and therefore fall fully within the scope of ICT services.
Answer prepared by	Answer prepared by the Joint ESAs Q&A
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7539

Question ID	2025_7466
Status	Final Q&A
Legal act	Regulation (EU) No 2022/2554 (DORA Reg)
Topic	Other DORA topics
Article	Recital 63
Paragraph	
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	Not applicable
Name of institution / submitter	Dr. Rolf Kobabe
Country of incorporation / residence	Germany
Type of submitter	Law firm
Date of submission	26/05/2025
Published as final Q&A	06/02/2026
Subject matter	Public Authorities Exemption
Question	Is the exemption for public authorities as quoted in recital 63 sentence 3 last half-sentence meant to be a general exemption for all public authorities as defined under art. 3 no. 65 DORA when providing ICT related services in the context of fulfilling State functions, or is the exemption limited to payment services and payment-related solutions?

Background on the question

Recital 63 sentence 1 DORA provides that DORA should cover, as a general rule, a wide range of ICT third-party service providers. Recital 63 sentence 2 DORA then provides and clarifies that undertakings which are part of a financial group and provide ICT services predominantly to their parent undertaking, or to subsidiaries or branches of their parent undertaking, as well as financial entities providing ICT services to other financial entities, should also be considered as ICT third-party service providers under DORA. Recital 63 sentence 3 DORA provides for a very specific part of the financial industry, namely for participants in the payment services ecosystem, providing payment-processing activities, or operating payment infrastructures, that such participant should also be considered to be ICT third-party service providers under DORA.

In this same sentence of recital 63 sentence 3 DORA the last half-sentence provides two exemptions, (i) central banks when operating payment or securities settlement systems (which is understandable in this context in view of operating payment systems, but not quiet in view of securities settlement systems, since recital 63 sentence 3 DORA deals with payment systems and the payment services ecosystem, but not with securities settlement systems), and (ii) public authorities when providing ICT related services in the context of fulfilling State functions, whereas the latter is not qualified to payment systems, the payment ecosystem, securities settlement systems, or whatsoever.

The original proposal of the European Commission of 24.9.2020 did not include any provisions that now have become law in recital 63. It seems that this amendment was included by the Council Mandate (as set out in the Three-column table to commence trilogues of Council of the European Union of 17 January 2022, 5297/22). The rationale behind this amendment cannot be determined based on the published documents relating to the legislative process.

Therefore, it is not clear, whether the exemption for public authorities is meant as a general rule (for any ICT related service in the context of fulfilling State functions), or whether such ICT related service of a given public authority needs to be a qualified ICT related service (e.g. payment service).

In this context it is in addition not clear, whether an 'ICT related service' (which is not defined in DORA) is wider (which seems to be the case) than an 'ICT service'.

For example, would a public administration entity that provides software tools to financial institutions to administrate subsidies (e.g. refinanced by EU Institutions) not be considered as an ICT third-party service provider, since it provides obviously ICT related services (if not ICT services), but - as a public authority - such services are provided in the context of fulfilling a State

	function (meaning: governmental economic development of regions)? As a consequence, such public authority would not need to be included in the ICT third-party risk management by the financial institution.
Final answer	Recital (63) of the DORA Regulation states that “public authorities providing ICT related services in the context of fulfilling State functions” should not be considered ICT third-party service providers (ICT TPPs) under DORA. This recital should be interpreted broadly to exclude essentially all public authorities from the scope of ICT TPP designation under DORA. In light of this interpretation, a public authority that provides data to financial entities should not be in scope of DORA, as an ICT service provider. Furthermore, the contractual arrangement requirement under Article 30.2 applies only where a financial entity engages an ICT TPP. If the public authority is not considered an ICT TPP, then the contractual obligations outlined in Article 30.2, including those under points (b) and (d), do not apply.
Answer prepared by	Answer prepared by the Joint ESAs Q&A
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7466

Question ID	2025_7483
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Supervisory reporting - COREP (incl. IP Losses)
Article	384
Paragraph	
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	-
Type of submitter	Credit institution
Date of submission	13/06/2025
Published as final Q&A	09/01/2026
Subject matter	Calculation of Ideosyncratic and Systematic Risk
Question	In the COREP C25 on CVA, rows 0230 and 0240 demand the ideosyncratic and systemic CVA risk. The scope that should be used for this calculation is

	not clear for us. Should the scope include the 'Memorandum' counterparties (e.g. not financial counterparties) or is this limited towards the 'Transactions in scope of own funds requirements' (e.g. financial counterparties)?
Background on the question	According to related articles (382-384) and the annex of C25, we believe the scope consists of the financial counterparties. However, we have some doubts due to: for the calculation, the reference is made to an enumeration of several parameters/variables. Within these parameters, there is for example a table with weights for the memorandum counterparties. Another source of doubt is the placement in the COREP where there is a subdivision 'Memorandum items' under which these 2 rows (0230 and 0240) fall.
Final answer	The transactions included for the purposes of rows 0230 and 0240 of template C25 on CVA should be the ones in scope of the own funds requirements for CVA risk. Accordingly, transactions exempted from the own funds requirements for CVA risk are not included for the purposes of the calculation of those rows.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7483

Question ID	2025_7473
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Supervisory reporting - COREP (incl. IP Losses)
Article	430
Paragraph	1a
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Regulation (EU) No 680/2014 - ITS on supervisory reporting of institutions (repealed)
Article/Paragraph	Article 430/1a
Type of submitter	Credit institution
Date of submission	02/06/2025
Published as final Q&A	09/01/2026
Subject matter	Threshold exemptions from deduction from Common Equity Tier 1 items - Reporting within CoRep C 07.00

Question	Please can we clarify where exposure per article 48 (4), should be reported in COREP Template C 07, Row 0250. The underlying item of investment in question is an Equity investment arising from Trading book primarily assessed for Market Risk; to be more specific, the underlying are CET1 instruments which are in scope for Significant Holding per article 48 (1). Art. 133 is part of Standardised Approach to Credit Risk within Title II of the CRR where all Banking book investments are risk weighted by reading across 48(4) in line with 133(2). While Art. 48 is applicable for both Trading book and Banking book investments, the specific question is the applicability of Article 133(2) for a Trading book Equity Investment and therefore where should such items be reported in COREP C07 Template. EBA's Q&A referred to below is generic in nature.
Background on the question	Art 48 (4) Threshold exemptions from deduction from Common Equity Tier 1 items 4. The amounts of the items that are not deducted pursuant to paragraph 1 shall be risk weighted at 250 %. EBA Q&A 2013_670https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2013_670 CET1 instruments of financial sector entities where the institution has a significant investment that are risk weighted at 250% are direct, indirect and synthetic holdings of CET1 own funds instruments. As regards the standardised approach, Article 133(2) of CRR mentions equity exposures which a 250% risk weight is assigned to in accordance with Article 48(4) CRR. Consequently, CET1 instruments of financial sector entities where the institution has a significant investment that are risk weighted at 250% shall be reported in template C 07.00 (CR SA) of Annex I of Regulation (EU) No 680/2014 (ITS on Supervisory Reporting) in the equity exposure class (and in the total exposure class).....
Final answer	Where an institution holds participations in the trading book and the own funds requirements for such participations are calculated in accordance with Article 48(4) of Regulation (EU) No 575/2013 (CRR) (i.e. by applying a risk weight of 250%), the participations should be reported in template C 21.00, row 0010, column 0070, of sheet 0001 (total). In that case, the institution may not comply with validation rule v0620_m. Where the institution benefits from the derogation of Article 94 CRR, it shall report the participations in the credit risk templates, as indicated in Q&A 670 instead.

Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7473

Question ID	2025_7425
Status	Final Q&A
Legal act	Directive 2015/2366/EU (PSD2)
Topic	Other topics
Article	68
Paragraph	1
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	68/1
Type of submitter	Industry association
Date of submission	23/04/2025
Published as final Q&A	12/12/2025
Subject matter	Setting limit (daily and/or per transaction) for the execution of payment transaction by PSP
Question	Is PSP allowed, according to the Article 68(1) of PSD2, to set a general limit (daily and/or per transaction) for the execution of payment transaction to the payee with the PSP in another EU Member state, under the certain payment initiation channel (for example mobile banking), in order to mitigate the risk of fraud (to prevent fraud)? Is PSP allowed to set different general limits for national payments and for payments to PSPs in another EU Member state (due to various fraud risk associated to these transactions)? Is PSP obliged to change a limit above the limit that the PSP set - on PSU's request for regular credit transfer?
Background on the question	Article 68 paragraph 1 of PSD2 prescribes that "Where a specific payment instrument is used for the purposes of giving consent, the payer and the payer's payment service provider may agree on spending limits for payment transactions executed through that payment instrument." According to this provision, the PSP is allowed to set a limit for the execution

of payment transaction under the certain payment initiation channel (for example mobile banking), in order to mitigate the risk of fraud (to prevent fraud).

When the payment transaction is an instant payment, the Article 5a(6) of the IPR is applied: " Upon the request of the PSU, a PSP shall offer a PSU the possibility of setting a limit fixing a maximum amount that can be sent by means of instant credit transfer. That limit may be either on a per day or per transaction basis, at the sole discretion of the PSU. PSPs shall ensure that PSUs are able to modify that maximum amount at any time prior to the placing of a payment order for an instant credit transfer. "

In answer to question 70 of Q&A [\[Clarification of requirements of the Instant Payments Regulation - European Commission \(europa.eu\)\]](#) regarding the harmonised implementation of Instant Payment Regulation (EU) 2024/886 (IPR) it is said: "Any spending limits set by PSPs have to be common for instant credit transfers and regular credit transfers (e.g., in accordance with Article 68 of PSD2, when a payment instrument is used to give consent). However, based on Article 5a(6) of the IPR, a PSU may request to set a higher limit for instant credit transfers since that provision does not impose a constraint of a limit that had been set by the PSP."

On request for further explanation of this answer, the European Commission kindly provided the following answer:

"If a PSU does not exercise its right to request a limit fixing a maximum amount that can be sent by means of instant credit transfers in euro in accordance with Article 5a(6) of the IPR and if its PSP has set a spending limit for credit transfers under Article 68(1) of PSD2, then the latter limit applies, but it has to be common for regular and instant credit transfers in euro, as clarified in Q67 of the [IPR Implementation](#) guidance.

If a PSU requests a limit fixing a maximum amount that can be sent by means of instant credit transfers in euro and that limit is on a daily basis and higher than the limit that has been set by a PSP under Article 68(1) of PSD2, then the limit requested by the PSU becomes the new binding daily limit only for instant credit transfers in euro. As regards regular credit transfers, the limit that has been set by the PSP under Article 68(1) of PSD2 will continue to apply or may be revised by the PSP in accordance with provisions of PSD2. *[At this point it is irrelevant if the limits for instant and regular credit transfers in euro diverge, because the PSU will have expressed its preference as regards limits for instant credit transfers in euro].*

If a PSU requests a limit fixing a maximum amount that can be sent by means of instant credit transfers in euro and that limit is on a per transaction basis, this effectively means that the PSU has chosen a transaction limit and not a daily limit. The transaction limit requested by the PSU becomes the binding limit only for instant credit transfer transactions in

	euro, but there is no daily limit for instant credit transfers that can be sent by the PSU. As regards regular credit transfers, the limit that has been set by the PSP under Article 68(1) of PSD2 will continue to apply or may be revised by the PSP in accordance with provisions of PSD2. <i>[At this point it is irrelevant if the limits for instant and regular credit transfers in euro diverge, because the PSU will have expressed its preference as regards limits for instant credit transfers in euro]."</i> Having that said, our question is: is PSP allowed, according to the Article 68(1) of PSD2, to set a general limit (daily and/or per transaction) for the execution of payment transaction to the payee with the PSP in another EU Member state, under the certain payment initiation channel (for example mobile banking), in order to mitigate the risk of fraud (to prevent fraud)? It is understood that the PSU can request a limit fixing above that limit – on a daily basis or per transactions, for instant payment transactions in euro. For regular credit transfer, the PSP can remain on its general limit set in order to prevent fraud and it is not obligated to change the limit above that limit, on PSU's request? Is PSP allowed to set different general limits for national payments and for payments to PSPs in another EU Member state (due to various fraud risk associated to these transactions)?
Final answer	Article 68(1) of Directive (EU) 2015/2366 (PSD2) provides that “Where a specific payment instrument is used for the purposes of giving consent, the payer and the payer’s payment service provider may agree on spending limits for payment transactions executed through that payment instrument”. According to Article 52(2)(f) of PSD2, the framework contract between the payment service provider (PSP) and the payment service user (PSU) should include information on whether there is a possibility to agree on spending limits in accordance with Article 68(1). Any changes to the terms and conditions concluded with the PSU must comply with Article 54 of PSD2. Furthermore, as regards instant credit transfers in euro, Article 5a(6) of Regulation (EU) No 260/2012, as amended by Regulation (EU) 2024/886 on instant payments (IPR), provides that: 'Upon the request of the PSU, a PSP shall offer a PSU the possibility of setting a limit fixing a maximum amount that can be sent by means of instant credit transfer. That limit may be either on a per day or per transaction basis, at the sole discretion of the PSU. PSPs shall ensure that PSUs are able to modify that maximum amount at any time prior to the placing of a payment order for an instant credit transfer'. It follows from the above that, in line with Article 68(1) PSD2, the PSP can implement spending limits for payment transactions initiated via specific

	payment instruments, which can be channel specific, provided such limits are agreed with the PSU in the framework contract. Furthermore, any spending limits concerning instant credit transfers in euro must comply with Article 5a(6) of Regulation (EU) No 260/2012. Article 5a(6) grants the PSU the right to set limits for instant credit transfers in euro, whether as daily or transaction-level limits, which apply across all payment initiation channels. However, this does not preclude a PSP from allowing its PSUs to set channel-specific limits (daily or transaction-level limits) for instant credit transfers in euro. PSD2 is silent on whether PSPs can apply differentiated spending limits for national versus cross-border payments where the PSP's analysis shows that cross-border transactions are associated with a different fraud risk rate. However, as mentioned above, any spending limits, including differentiated spending limits for national versus cross-border payments should be agreed in the framework contract in accordance with Article 52(2)(f), and comply with any other applicable EU legislation, including, in the case of instant credit transfers, Article 5a(6) of Regulation (EU) No 260/2012. Regarding the third question, PSD2 does not specifically oblige PSPs to increase the agreed limits for regular credit transfers upon the PSU's request. However, the permissibility of refusing such requests should be assessed in light of the terms of the framework contract and applicable consumer-protection rules (e.g., unfair terms). For instant credit transfers in euro, Article 5a(6) of Regulation (EU) No 260/2012 gives PSUs the right to set and modify their own limit as described above.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7425

Question ID	2025_7568
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Supervisory reporting - FINREP (incl. FB&NPE)
Article	430
Paragraph	3
Subparagraph	-
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Regulation (EU) 2024/3117 - ITS on supervisory reporting of institutions

Article/Paragraph	Annex V, PART 2, paragraphs 2, 3
Type of submitter	Competent authority
Date of submission	01/09/2025
Published as final Q&A	05/12/2025
Subject matter	Definition of 'demand deposits' for FINREP reporting
Question	How to report in FINREP loans and advances on demand and short notice that are not readily available at all times?
Background on the question	We would like to get comprehensive and unified guideline regarding reporting any kind of loans on demand and short notice that are not readily available at all times. The latter means that draw funds is not within the power of the bank, the bank is dependent on the willingness of the debtor whether the claim will be settled or not. The uncertainty regarding the correct reporting of such exposures was caused by publishing 2 Q&As, each of them treating such exposures differently: • In line with Q&A 2024_7191 in case of financial guarantee given on debt of credit institutions that has been called and paid by the bank, the customer's obligation to reimburse the payment to the bank should be reported in template F 05.01 in row 0010 'On demand [call] and short notice [current account]'. Consequently, when the debtor is credit institution, balances are included in template F 01.01 in row 0040 'Other demand deposits'. • In line with Q&A 2024_7241 reverse repurchase loans to credit institutions with original maturity of less than or equal to one day should be reported in template F 01.01 as 'loan' in the relevant accounting portfolio following the applicable accounting rules, outside the row 0040 'Other demand deposits'.
Final answer	The instruments included in 'Loans and advances on demand and short notice' that are not readily available at all times fall within the definition of "Loans and advances" as set out in the IT solutions to Commission Implementing Regulation (EU) 2024/3117 (Annex V- paragraph 32, Part 1). More specifically, they correspond to the definition of "loans" provided in the table of Part 2 of Annex II to Regulation (EU) 2021/379 (ECB BSI Regulation). In template F 01.01, provided that the counterparty's obligation to repayment these loans to the reporting institution is not immediately due and payable, and therefore the amounts are not readily available at all times,

	these loans should be reported within the relevant accounting portfolio, in accordance with applicable accounting standards, and reported outside row 0040 “Other demand deposits” since they do not meet the definition of “Other demand deposits” as described in paragraph 3 of Part 2 of Annex V.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7568

Question ID	2025_7500
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Supervisory reporting - COREP (incl. IP Losses)
Article	495d
Paragraph	1
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Regulation (EU) 2024/3117 - ITS on supervisory reporting of institutions
Article/Paragraph	2.4 Annex II, Part II, Credit Risk SA, Section 3.2.5
Type of submitter	Credit institution
Date of submission	20/06/2025
Published as final Q&A	05/12/2025
Subject matter	Appropriate reporting of unconditionally cancellable commitments (UCCs) subject to transitional arrangements of Article 495d in CR SA (COREP C_07.00)
Question	In the absence of specific guidance in the Annex, the scope of the new column c0195 <i>Transitional arrangements for UCCs</i> in C_07.00 and the expected reporting of such UCCs throughout the transition phase remains unclear. For example, the Bank has a UCC with a nominal value of €100,000, all of which remains undrawn over the transition period 1 January 2025 to 31 December 2032. Please confirm that the exposure shall be consistently reported as €100,000 in c0195 throughout the transition period 1 January 2025 to 31 December 2032, as follows.

	Reference Period <u>Transitional Arrangement Art 495d (1) Factor</u> <u>Example: UCC with nominal value of €100,000</u> <u>c0195</u> <u>Exposure Value</u> <u>c0200</u> 2025-2029 0% 100,000 0 2030 25% 100,000 2,500 2031 50% 100,000 5,000 2032 75% 100,000 7,500 Whilst acknowledging the relevant validations v6364_m and v0307_m, the proposed rationale is based on the principle that the UCC is in its entirety subject to the transitional arrangements as from the reference period 2025. Effectively, this implies that c0195 shall consist of the <i>fully adjusted exposure value prior to the application of both the CCF and the transitional factor laid down in Article 495d</i>. Such reporting would also ensure alignment with c0150 and the preceding columns.
Background on the question	Our query stems from the fact that the proposed reporting of c0195 does not accurately present the effect of the transitional factors over the phasing period within the section “<i>Breakdown of the fully adjusted exposure value of off-balance sheet items by conversion factors</i>”. Instead, we understand that the effects of the transition shall be evident in c0200 <i>Exposure Value</i>, where such column comprises the exposure value after <u>both</u> the application of the CCF and the factor prescribed in Article 495d.
Final answer	Example is correct. The figures reported in column 0195 shall be the fully adjusted exposure values of off-balance sheet items, for which the transitional arrangements for UCCs are applied, before application of the conversion factor. In column 0200 the figures reported shall be the fully adjusted exposure values after application of the conversion factor. The effects of the application of the transitional arrangements for UCCs on RWEA are reported in column 0241, i. e. the difference between the RWEA calculated without applying the transitional provisions and the RWEA calculated applying the transitional provisions.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7500

Question ID	2025_7489
Status	Final Q&A

Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Supervisory reporting - COREP (incl. IP Losses)
Article	430
Paragraph	1
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Regulation (EU) No 680/2014 - ITS on supervisory reporting of institutions (repealed)
Article/Paragraph	430 / 1
Type of submitter	Credit institution
Date of submission	16/06/2025
Published as final Q&A	05/12/2025
Subject matter	C 25.01 - CREDIT VALUATION ADJUSTMENT RISK (CVA) - Col 0090 - Instruction Clarification
Question	The CoRep instructions for the BA-CVA unhedged value point to CRR Article 384(3). The formula in this article contains the 0.65 discount factor. However, as per the EBA's Final Report on Amendments to the ITS on Supervisory Reporting - CRR3/CRD6, the EBA analysis column on question 18 ('Q18') mentions that the instructions for this column are clear that the discount factor of 0.65 shall not be applied.
Background on the question	Reporting instructions are not clear in relation to the discount factor of 0.65
Final answer	The column 0090 "BACVAcscr-unhedged" of template C25 does not contain the 0.65 discount factor (DS_CVA). The instructions will be clarified on this aspect.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7489

Question ID	2025_7512
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Credit risk
Article	5

Paragraph	9
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	n.a.
Type of submitter	Competent authority
Date of submission	27/06/2025
Published as final Q&A	28/11/2025
Subject matter	Application of the SME definition in specific cases
Question	How shall the SME definition in Article 5(9) of Regulation (EU) No 575/2013 (CRR) be applied in the following cases: 1. The entity is considered both in accounts on the consolidated basis of a group and also in accounts on a “sub-consolidated” basis only considering a sub-group of this group. 2. The entity is a single entity that prepares accounts on its individual basis but is not considered in any accounts for a “consolidated situation” of a group.
Background on the question	The question is how to apply the criterion “according to its most recent consolidated accounts, has an annual turnover not exceeding EUR 50 000 000” in particular in the following cases: 1. The entity belongs to a group but also prepares accounts on a “sub-consolidated basis” for a sub-group only consisting of this entity together with some but not all other group members, e.g. where the entity is not the ultimate parent of this group and the sub-group only includes this entity together with its subsidiaries but not other group members. 2. The entity does not belong to a group and therefore does not prepare consolidated accounts.
Final answer	The definition of SMEs in Article 5, point (9) CRR requires assessing the annual-turnover threshold for the company, enterprise or undertaking “according to its most recent consolidated accounts”. In applying this provision, reference should be made to the accounting framework applicable to the company, enterprise or undertaking in question. In particular, for undertakings within the scope of Article 1 of Directive

	2013/34/EU, the SME definition should be interpreted in accordance with the accounting framework based on this Directive. Where a company, enterprise or undertaking is not within the scope of Article 1 of the same Directive, compliance with the SME definition may be verified based on the most recent information provided under other periodic and statutory frameworks for the publication or the reporting of financial information of undertakings to public authorities of their country of domicile, provided the information therein gives an accurate indication of annual turnover. 1. For a company, enterprise or undertaking that is included in consolidated financial statements prepared by the ultimate parent of a group for the purpose of the applicable accounting framework, the relevant consolidated accounts are those of the group headed by the ultimate parent. Therefore, the turnover figure to be considered is the one reported in the consolidated financial statements of the ultimate parent. This applies regardless of whether the company, enterprise or undertaking itself prepares consolidated financial statements as a parent undertaking of a sub-group, or is a subsidiary undertaking included in consolidated financial statements of a sub-group prepared by a parent that is not the ultimate parent undertaking of the group. 2. In the case of a company, enterprise or undertaking that is not part of a group and therefore only prepares its own financial statements, for the purpose of the applicable accounting framework, the applicable consolidated accounts are those prepared on an individual basis from its own financial statements. Alternatively, the assessment may rely on other information provided under periodic and statutory frameworks for the publication or the reporting of financial information to public authorities, as long as the information provides a reliable indication of the annual turnover.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7512

Question ID	2024_7290
Status	Final Q&A
Legal act	Regulation (EU) No 2022/2554 (DORA Reg)
Topic	ICT third-party risk management
Article	3
Paragraph	21
Subparagraph	
COM Delegated or Implementing	Not applicable

Acts/RTS/ITS/GLs/Recommendations	
Article/Paragraph	N/A
Type of submitter	Credit institution
Date of submission	20/12/2024
Published as final Q&A	14/11/2025
Subject matter	Definition and scope of ICT services
Question	What is the correct reading of Article 3 (21) and Recital 63, Article 2 and Article 58(2) of Regulation (EU) No. (EU) 2022/2554 (DORA Reg) in combination with the COM/2023/0365 European Commission Report on the review of Directive 2015/2366/EU ?
Background on the question	In our understanding, in line with the European Commission report COM/2023/0365, payments systems and entities involved in payment processing activities should not be treated as entities falling within scope of DORA Regulation to whom DORA requirements would be applicable directly (as financial institutions listed in Article 2 (Scope) of DORA) and that consequentially would be subject to direct oversight by competent authorities. However, it does not affect that such operators of payments systems and entities involved in payment processing activities should be treated as ICT service providers by financial institutions, as established by Recital 63, whereas operation of such payment processing systems/infrastructures/networks should be treated as ICT services by financial entities. Consequentially, mandatory DORA requirements should be applied to such arrangements impacting such payment system operators indirectly, as they in essence match the "ICT services" definition provided by Article 3 (21) of DORA Regulation. Inter alia, it would include securing contractual framework that match the requirements of Articles 28 and 30. Various major payment systems/infrastructure providers are refusing to negotiate terms of agreements governing use of their payment systems/infrastructures, arguing that requirements set by DORA are not applicable to payment systems/infrastructures.
Final answer	Article 2(1) of the Digital Operational Resilience Act (DORA) introduces the entities within the scope of DORA. Providers of payment-processing activities or operating payments infrastructures, including payment card schemes, are not included in said Article and, therefore, are not to be considered financial entities within the scope of DORA. Article 3(21) of DORA defines 'ICT services' as digital and data services

	provided through ICT systems to one or more internal or external users on an ongoing basis, including hardware as a service and hardware services which includes the provision of technical support via software or firmware updates by the hardware provider, excluding traditional analogue telephone services. Recital (63) of DORA specifies that providers of payment-processing activities or operating payments infrastructures should be considered to be ICT third-party service providers under DORA, with the exception of central banks when operating payment or securities settlement systems, and public authorities when providing ICT related services in the context of fulfilling State functions. It follows from the above that any relevant service provided by providers of payment-processing activities or operating payments infrastructures that falls within the definition under Article 3(21) of DORA, should be considered as an ICT service under DORA. Therefore, financial entities should ensure they comply with relevant provisions of DORA relating to the services provided by these ICT third-party service providers. It should, however, be noted that not all services provided by these providers, including payment card schemes, are to be considered ICT services. Services provided by a governance body of a scheme or business processes of the providers of payment-processing activities or operating payments infrastructure without a prevailing ICT component, such as clearing and settlement, should not be considered within the scope of ICT services under Article 3(21) of DORA. Finally, it should be noted that in accordance with Article 31(8)(ii) of DORA, ICT third-party service providers that are subject to oversight frameworks established for the purposes of supporting the tasks referred to in Article 127(2) of the Treaty on the Functioning of the European Union, shall not fall within the scope of the oversight framework of critical ICT third-party service providers under DORA.
Answer prepared by	Answer prepared by the Joint ESAs Q&A
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2024_7290

Question ID	2025_7439
Status	Final Q&A
Legal act	Regulation (EU) No 2022/2554 (DORA Reg)
Topic	ICT-related incidents (management / classification / reporting)
Article	18(4)

Paragraph	
Subparagraph	Subparagraph (c)
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Regulation (EU) 2024/1772 - RTS on the classification of ICT-related incidents and cyber threats
Article/Paragraph	7
Type of submitter	Competent authority
Date of submission	12/05/2025
Published as final Q&A	14/11/2025
Subject matter	Staff costs
Question	Do imputed staff costs count as part of staff costs in accordance with Article 18(1)(f) of Regulation (EU) 2022/2554 in conjunction with Article 7(1)(c) Delegated Regulation (EU) 2024/1772 and Article 4(e) Delegated Regulation (EU) 2025/301 and must, therefore, be reported as part of gross direct and indirect costs and losses of an incident?
Background on the question	In order to determine the economic impact of an ICT-related incident, in accordance with Article 18(1)(f) of Regulation (EU) 2022/2554 in conjunction with Article 7(1)(c) Delegated Regulation (EU) 2024/1772 „staff costs, including costs associated with replacement or relocation of staff, recruitment of extra staff, remuneration of overtime and recovery of lost or impaired skills” shall be taken into account. According to Article 4(e) Delegated Regulation (EU) 2025/301, these costs are to be reported as part of the final report in accordance with Article 19(4)(c) of Regulation (EU) 2022/2554. There is no further specification, particularly with regard to imputed staff costs that do not lead directly to a monetary outflow. Article 7(2) of Delegated Regulation (EU) 2024/1772 does not provide any information on this either, according to which only „costs that are necessary for the day-to-day operation of the business” are excluded from the above-mentioned regulation. The question submitted is intended to ensure legal certainty in the interpretation of the aforementioned Delegated Regulation as well as the consistency and comparability of reports of major ICT-related incidents. In particular, it is not clear whether the staff costs to be taken into account in accordance with Article 7(1) of the Delegated Regulation also include imputed staff costs. These can arise, for example, if employees are unable to perform their line tasks due to the priority processing of an ICT-related incident or postpone them to a later date, or if they build up overtime to

	process an ICT-related incident, which is then reduced by way of compensatory time off. Besides these rather indirect costs the term imputed staff costs also cover (direct) costs for personnel hired and responsible for processing of ICT-related incidents. Additionally, with regard to Article 7(2) of Delegated Regulation (EU) 2024/1772, we do not find clear whether staff costs for resources which have already been earmarked and planned for incident handling fall within the day-to-day operation of the business and are hence excluded. In particular, it is unclear what is the distinction between the costs “for keeping skills of staff up to date” and those for “the recovery of lost or impaired skills”.
Final answer	Article 7 of Delegated Regulation (EU) 2024/1772 specifying the criteria for the classification of ICT-related incidents outlines the types of direct and indirect costs and losses that entities must take into account to determine the economic impact due to a ICT-related incident. Article 7(1) (c) of the Delegated Regulation (EU) 2024/1772 specifies that the economic impact of an ICT-incident includes staff costs. The provision also specifies that staff costs include costs “associated with replacement or relocation of staff, recruitment of extra staff, remuneration of overtime and recovery of lost or impaired skills”. Where the overtime is not remunerated but compensated through working time arrangements, the incident-related overtime should still count towards the staff costs, if those costs can clearly be attributed to the incident. Similarly, working time that is clearly allocated to the handling of the incident, should count towards staff costs. This consideration also applies where the resources have been earmarked or planned for incident handling in general. This ensures a consistent assessment of costs irrespective of internal processes and resource planning and allocation of financial entities. Staff training activities aimed to prevent or minimize the consequence of potential incidents fall under the exclusion of the costs in accordance with Article 7(2) of the Delegated Regulation (EU) 2024/1772 for keeping skills of staff up to date, as a cost necessary for the day-to-day operation of the business. Instead, costs for recovery of skills lost or impaired, are those which occur as a consequence of an incident in accordance with Article 7(1) of the Delegation Regulation (EU) 2024/1772, for example addressing retraining of staff that had to be reallocated. It is to be noted that the Delegation Regulation (EU) 2024/1772 does not prescribe a specific calculation methodology for these costs. This omission reflects the inherent complexity and the variability of cost structures across different financial entities and activities.
Answer prepared by	Answer prepared by the Joint ESAs Q&A

Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7439

Question ID	2024_7124
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Securitisation and Covered Bonds
Article	129
Paragraph	1
Subparagraph	c
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	Not applicable
Type of submitter	Credit institution
Date of submission	26/06/2024
Published as final Q&A	07/11/2025
Subject matter	Exposure to credit institutions in the form of derivative contracts
Question	Should "exposure" also consider and include cash collateral held by the covered bond issuer from its swap counterparty?
Background on the question	Covered bonds are normally hedged with swaps, especially for currency risk and especially by issuers outside the Eurozone when issuing in EUR (issuers in Norway for example). When collateral posting by the covered bond issuer's swap counterparty is subject to contract (ISDA Schedule and CSA), we think that the word "exposure" in Article 129(1)(c) CRR should also include, or regard collateral held from the swap counterparty. With regards to covered bond swaps, the Regulation (EU) 2016/2251, Article 30(1)(a) is important in this context. Here it is regulated that when covered bond swaps are not centrally cleared but are OTC swaps (as must be the case with all currency swaps), variation margin in the form of cash must be collected from the swap counterparty. A sole focus on the covered bond swap counterparty's Credit Quality Step with no regard for the collateral posted by this counterparty to the covered bond issuer (cover pool) neglects the underlying economic reality when it comes to exposure. This subject matter is important if a bank, which is a cover bond swap counterparty, is downgraded to CQS3 during a running swap contract. That would mean that such a counterparty must be replaced to fulfil Article 129 CRR, unless the national regulator has allowed CQS3 due

	to concentration issues in the market (however, the argument is not about allowing new derivatives contracts with CSQ3 counterparties, but what happens upon a downgrade to a counterparty in a running contract). However, when such a swap counterparty has posted as collateral all mark-to-market amounts it owes under a swap contract in cash to the covered bond issuer, we think that when assessing the covered pool's exposure, this should be included. That is the essence of why collateral is posted. Moody's rating methodology also requires a collateral buffer to be posted above the Mark-to-market exposure in such cases (swap counterparty loses a A3 rating), and many issuers are following this methodology.
Final answer	According to Article 111(6) and (7) of Regulation (EU) 575/2013 (hereafter referred to as 'CRR'), the exposure towards credit institutions in the form of derivative contracts for the purpose of counterparty credit risk capital requirements shall be determined net of cash collateral received, in line with the provisions set forth in Chapter 4 and Chapter 6 of the CRR. Collateral received by the covered bond issuer has the purpose of mitigating the exposure to the derivative transaction's counterparty. Cash collateralisation has the effect of increasing the credit (or - equivalently - decreasing the debit) of the issuer's general operating account with the central bank. As such, being indistinguishable within the issuer's estate, it cannot be segregated for the benefit of the covered bond programme (e.g. by way of annotating the amount of cash collateral received with the cover register entry of the associated derivative transaction). Conversely, the collateral received constitutes a latent obligation of the issuer/covered bond estate to return it to the counterparty/collateral provider upon a revaluation of the derivative transaction's netting set no longer requiring variation margining to that extent, thus constituting a latent coverable obligation according to point c in Article 15 paragraph 3 subparagraph 1 of Directive (EU) 2019/2162 (hereafter referred to as 'CBD'). A covered bond estate's inability to honour this redemption obligation, which is theoretically due at any time, would constitute a breach of contract or a failure-to-pay under standard governing documentation resulting in early termination of the derivative transaction, in line with point d of Article 11 paragraph 1 CBD, thereby preventing the continuation of the derivative transaction, required by point d of Article 11 paragraph 1 CBD, just as it may become relevant for covered bond investor protection due to the transitioning from first to second recourse. Therefore, for cash collateral to be taken into account when determining the extent to which a cash-collateralised derivative transaction within the meaning of Article 11 CBD counts as an exposure to the counterparty credit institution and, thus, utilises the corresponding CQS-linked limits as required by Article 129 paragraph 1a CRR, it needs to be fully segregated for the

	benefit of the covered bond programme, cf. Article 12 paragraph 1 subparagraph 2 CBD. This requirement implies the following conditions shall be met: • there is a legally valid and enforceable agreement that the received collateral may be used to offset amounts due to the covered bond issuer upon involuntary early termination (“breach of contract”) of the derivative (for instance, because of clauses of netting-by-novation of close-out amounts in ISDA Master Agreement), as per Article 30(1)(a) of CDR (EU) 2016/2251. • the received cash collateral is effectively segregated for the benefit of the covered bond investors, in line with the national requirements transposing Article 12 paragraph 1 CBD. The first condition ensures that the purpose of the collateralisation of mitigating the issuer’s/covered bond estate’s exposure to the counterparty in case of (involuntary) early termination of the derivative transaction while the market valuation of the underlying derivative constitutes a claim of the issuer/covered bond estate is met. The second condition is meant to enable the covered bond estate – in case of estate separation – to fulfil the (potentially very short-term) obligation to return the received collateral to the counterparty under an ongoing derivative transaction. In the absence of the above conditions, cash collateral shall not be considered for netting purposes with respect to derivatives contracts.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2024_7124

Question ID	2025_7350
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Credit risk
Article	501
Paragraph	1
Subparagraph	(b)
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	n/a
Type of submitter	Credit institution

Date of submission	21/02/2025
Published as final Q&A	31/10/2025
Subject matter	Calculation of the SME supporting factor for off-balance-sheet exposures
Question	Is the SME supporting factor applicable, and if so, how shall it be computed, in case there is no on-balance-sheet exposure to be included in E*, as defined in Article 501(1) of CRR?
Background on the question	Article 501(1) states that E* in the formula for the computation of the SME supporting factor shall be either the total amount owed by the group of connected clients of the SME as far as it is not secured by residential property collateral (point a), or – in case the beforementioned definition results in a value of zero – it shall be the amount secured by residential property collateral excluded from the calculation described in point a (point b). First, it is not quite clear, if the definition in point b per se includes off-balance-sheet items, as on the one hand it refers to “contingent claims” and on the other hand it refers to the amount excluded from point a, which itself is based on the amount owed by the client and a contingent claim is not owed in the present. Further, situations may arise, where the amount defined in point a as well as the amount defined in point b are equal to zero, for example if the exposure towards an SME consists of an undrawn line only and there is no residential real estate collateral. As the division by zero is undefined for real numbers, it is not possible to calculate RWEA* for those cases. It is thus not clear, if the SME supporting factor may be applied to such cases, and if so, how it shall be derived. Regarding the following example, it seems inconsistently not to use an SME supporting factor at all: In case an SME has a revolving credit as a working capital facility with a credit limit of EUR 3,000,000.00 and there is no mortgage involved, if the credit line is drawn in the amount of EUR 2,000,000.00, an SME supporting factor of 0.7619 is applicable, as E* amounts to EUR 2,000,000.00. If at another point in time, there are no funds drawn under this credit line, both the definitions of E* in points a, and b of Article 501(1) result in a value of zero, as described above. However, to us it is counterintuitive and inconsistent over time, not to use a supporting factor just because there are by chance no funds drawn at a certain reporting reference date. If the SME supporting factor is applicable at both points in time in the example above, there is still the problem of identifying E*, when no funds are drawn. Using the whole nominal amount of the credit line would result in an

	SME supporting factor of about 0.7766. In this case, the SME supporting factor would be higher, if there are no funds drawn, than if there was a single euro cent drawn (or an amount up to EUR 2,500,000.00).
Final answer	For calculating RWEA* according to Article 501 CRR, if E* is equal to 0, institutions should apply the formula $RWEA^* = RWEA \cdot 0,7619$. This is because for $E^* < EUR\ 2\ 500\ 000$, the formula according to Article 501 CRR results in $\min(E^*; EUR\ 2\ 500\ 000) = E^*$ and $\max(E^* - EUR\ 2\ 500\ 000; 0) = 0$. Hence, for any $0 < E^* < EUR\ 2\ 500\ 000$, it holds that $RWEA^* = RWEA \cdot (E^* \cdot 0,7619 / E^*) = RWEA \cdot 0,7619$.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7350

Question ID	2025_7382
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Credit risk
Article	223
Paragraph	4
Subparagraph	(b)
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	N/A
Name of institution / submitter	Kurt Lund Accounting
Country of incorporation / residence	Sweden
Type of submitter	Accounting firm
Date of submission	17/03/2025
Published as final Q&A	31/10/2025
Subject matter	AIRB combined with Financial Collateral Comprehensive Method
Question	Article 223 para 4 subpara (b) indicates that banks using the A-IRB approach can also utilize the Financial Collateral Comprehensive Method (FCCM). Does the EBA agree with this?

Background on the question	According to CRR article 108 institutions using the AIRB approach may take into account the effect of funded credit protection according to chapter 3 whereas institutions using the FIRB approach may take into account the effect of funded credit protection according to chapter 4. Given that the FCCM method is placed within chapter 4 it was always our assumption that the FCCM method could only be utilized by institutions using the Foundation approach (and the standardized approach) and not by institutions using the AIRB approach with own estimates of LGD and CCF. However the CRR3 revised text in article 223 para 4 (b) mentions that institutions using IRB-CCF must set these to 100% instead of using own estimates of CCF according to article 166 (8), (8a) and (8b) if and when they are using the FCCM method. Given that IRB-CCF is exclusively an approach that can be used by institutions using the AIRB approach it must therefore be deduced that institutions using AIRB with own estimates of LGD and CCF can also utilize the FCCM method despite the fact that it is mentioned in chapter 4 and not in chapter 3.
Final answer	In accordance with Article 108(1) of the CRR, institutions applying the Standardised Approach or the IRB Approach without using own estimates of LGD for an exposure may recognise any available funded credit protection (FCP) pursuant to Chapter 4 of Part Three Title II of that Regulation. By contrast, in accordance with Article 108(2) CRR, institutions applying the IRB Approach using own estimates of LGD for an exposure may take into account the effect of funded credit protection in accordance with Chapter 3 of Part Three Title II of the CRR. With Regulation (EU) 2024/1623, an exemption to this general treatment was introduced in Article 161(7) CRR. Under that exemption, an institution using own estimates of LGD for a given type of unsecured exposures to corporates, regional governments and local authorities or public sector entities, which is not able to take into account the effect of the FCP securing one of those exposures in the own estimate of LGD due to lack of data on recoveries for that FCP, is allowed to derive the LGD for such an exposure by combining the institution's own estimate of LGD for unsecured exposures with the LGD for the secured part of the exposure determined for the respective type of FCP in accordance with Chapter 4 of Part Three Title II of the CRR. The reference to IRB-CCF in point (b) of Article 223(4) CRR, which was also introduced by Regulation (EU) 2024/1623, therefore exclusively refers to exposures, which are subject to that exemption, whereas the Financial Collateral Comprehensive Method remains inapplicable for other exposures for which an institution is using own estimates of LGD.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	

Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7382
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Question ID	2025_7479
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Market risk
Article	325u
Paragraph	4
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	.
Type of submitter	Competent authority
Date of submission	10/06/2025
Published as final Q&A	31/10/2025
Subject matter	Exclusion of back-to-back positions from RRAO
Question	Under the provision of Art. 325u(4)(c) CRR, how should perfectly offsetting positions be treated in different constellations (concretely, the instruments comprising the two offsetting positions can have either a 'one-to-one (1:1)' relationship or a 'many-to-many (m:n)' relationship) in terms of excluding them from the own funds requirements for residual risks?
Background on the question	The question concerns the application of the requirement in Art. 325u(4)(c) CRR in cases where there is not a simple 1:1 relationship between instruments in a back-to-back arrangement, including scenarios where the notional amounts are different. The underlying question is whether two perfectly offsetting ('mirroring') positions may only be ex-empted if there is a 1:1 relationship between the corresponding instruments, or whether – more generally – also two mirroring positions resulting from two groups of instruments that are identical in all aspects other than the notional (i.e., the position size) can be (partially) exempted. In the latter case, it concerns a 'partial' exemption in regard to the two groups of instruments, since only the 'overlapping' notional may be off-set; that is, the offsetting might cover only a fraction of one of the instruments involved (as illustrated below). The proposed answer follows the latter idea and concludes that allowing exclusion of the overlapping notional is permissible under the condition that the market risk of the excluded mirroring positions is perfectly offset. This

	interpretation aligns the treatment under the own funds requirements for residual risks with the economic reality of a back-to-back hedge where the market risk of two groups of positions is perfectly offset.
Final answer	According to Art. 325u(4)(c) CRR, the treatment of perfectly offsetting instruments in different constellations is as follows: 1:1 (one-to-one) perfect back-to-back (two positions, each corresponding to precisely one instrument (<u>the instrument is identical</u>), perfectly offset the market risk of each other). When there are two instruments and by inference two positions that perfectly offset the market risk of each other on a 1:1 basis, these positions shall be exempted from the own funds requirement for residual risks. m:n (many-to-many) perfect back-to-back (two positions perfectly offset the market risk of each other): In cases where there are two sets of instruments that are <u>identical in all respects other than notional</u> and, accordingly, two positions that, when taken together, perfectly offset each other's market risk, these positions shall also be exempt from the own funds requirement for residual risk. For example, if there are three positions in a structured note that are subject to the residual risk own funds requirements and that are identical in all respects except for the notional amount, e.g. 1. buy 1,000 notional, 2. buy 2,000 notional, 3. sell 3,000 notional, then both the buy position (3,000 notional) and the sell position (3,000 notional) are exempted. m:n (many-to-many) perfect but partial back-to-back (two positions perfectly offset the market risk of each other, but 'partially' in the sense that the exemption concerns the 'overlapping' notional)*: Assuming there are two sets of instruments that are <u>identical in all respects except for the notional amount</u> and, accordingly, two positions that only partially offset each other's market risk. In this case, only the part of the sets of positions that overlaps and is identical in all respects except for the notional amount shall be exempted from the residual risk own funds requirements. The remaining part that does not overlap is not exempted. For example, if there are three positions in a structured note subject to the residual risk own funds requirements that are identical in all respects except for the notional amount, e.g. 1. buy 1,000 notional, 2. buy 2,000 notional, and 3. sell 2,500 notional, then

	the sell position (2,500 notional) and the mirroring 2,500 notional of the buy positions (i.e., only part of the entire buy position) are exempted, while the remaining 500 notional of the buy position is subject to the residual risk own funds requirement. This treatment requires that the exempted positions perfectly offset each other's market risk.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7479

Question ID	2025_7533
Status	Final Q&A
Legal act	Regulation (EU) No 575/2013 (CRR)
Topic	Transparency and Pillar 3
Article	451a
Paragraph	3
Subparagraph	
COM Delegated or Implementing Acts/RTS/ITS/GLs/Recommendations	Not applicable
Article/Paragraph	451a/3
Type of submitter	Credit institution
Date of submission	24/07/2025
Published as final Q&A	31/10/2025
Subject matter	Disclosure of liquidity requirements - NSFR - LIQ2. Periodic data to be disclosed in the Disclosure Period
Question	Further to the publication of the P3DH Framework, we would like to clarify the expectation around the periodic data to be disclosed within the Disclosure Period, relating to the NSFR LIQ2 template. As part of the Taxonomy 4.1 Release and the publication of the associated 'Annotated Tables', it is apparent that firms will be required to disclose 4-quarters worth of data, so 'T', 'T-1', 'T-2' and 'T-3'. At present, it is apparent that firms across the EU have interpreted the CRR in different ways when reviewing their Pillar 3 Disclosures for this template. For example, for year-end related disclosures we are observing a combination of : a) a 'spot' year-end position; b) a year-on-year comparison or c) a quarter-on-quarter comparison across Financial Institutions.

	The CRR guidance states the following: 3. Institutions shall disclose the following information in relation to their net stable funding ratio as calculated in accordance with Title IV of Part Six: (a) quarter-end figures of their net stable funding ratio calculated in accordance with Chapter 2 of Title IV of Part Six for each quarter of the relevant disclosure period; We take this to mean the 'quarter-end' periods within the current disclosure year, rather than a 'rolling' quarter-end view. Note that when we refer to a 'rolling' quarter view, for example when disclosing at HY (half-year) 2024, this would include Q3 and Q4 from 2023, together with Q1 and Q2 from 2024.
Background on the question	Differing interpretation across industry in terms of requirements.
Final answer	In accordance with Article 451a(3)(a) of Regulation (EU) No 575/2013 (CRR), institutions shall disclose the quarter-end figures of their net stable funding ratio calculated in accordance with Chapter 2 of Title IV of Part Six for each quarter of the relevant disclosure period. This means that the 'quarter-end' figures within the current disclosure year, rather than 'rolling' quarter-end figures, shall be disclosed. In particular, considering a large institution that disclose semi-annually the template EU LIQ2, the following information should be required to disclose: • For half-year disclosures, two data templates representing the first (Q1) and the second quarter (Q2) of the current disclosure year; • For full-year disclosures, four data templates representing the first (Q1), the second (Q2), the third (Q3) and the quarter (Q4) of the current disclosure year.
Answer prepared by	Answer prepared by the EBA.
Note to Q&A	
Link	https://www.eba.europa.eu/single-rule-book-qa/qna/view/publicId/2025_7533

European Banking Authority, 15/03/2026
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